

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT: Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

Criminal Misc. Application No. 1091/2024 in/and
Jail Petition No.223/2022

(Against the judgment/order dated 24.03.2022
passed by the Lahore High Court, Multan Bench,
in Crl. A. No. 509-J/2018 & M. R. No. 43/2018)

Muhammad Safdar *(in both)* Applicant/Petitioner(s)

Versus

The State *(in both)* Respondent(s)

For the Applicant/Petitioner: Mr. Dil Muhammad Khan Alizai, ASC
Syed Rifaqat Hussain Shah, AOR

For the State: Rai Akhtar Hussain, APG, Punjab

Date of Hearing: 08.04.2026 & 04.05.2026

JUDGMENT

Muhammad Hashim Khan Kakar, J. At the very outset it is stated that Criminal Miscellaneous Application No. 1091/2024 has been filed stating that a compromise has been affected between the petitioner and the legal heirs of the deceased, therefore, the acquittal of the petitioner on the basis of such compromise has been prayed for after verification thereof. In this regard, a verification report was sought from the Trial Court on 06.02.2026. The report has been received, whereby the Trial Court has reported that the compromise has been found to be voluntary, genuine and without any pressure, coercion or undue influence.

2. The petitioner, Muhammad Safdar, and his co-accused, Muhammad Amin and Muhammad Ajmal, were put to trial for the murder Ghulam Qadir (deceased) and upon its conclusion the petitioner was found guilty by the Trial Court, convicted under section 302(b) of the Pakistan Penal Code, 1860 ("**PPC**") and sentenced to death with direction

to pay Rs.100,000/- as compensation to the legal heirs of the deceased under section 544-A of the Code of Criminal Procedure, 1898 ("**Cr.P.C.**") and in default thereof to undergo six months S.I., whereas the co-accused were acquitted from the case. Against his conviction and sentence, the petitioner preferred an appeal before the Lahore High Court, Multan Bench, which was dismissed vide impugned judgment dated 24.03.2022 and his conviction was maintained, however, only his sentence of death was converted to imprisonment for life. It is against this judgment the petitioner has filed the instant jail petition.

3. The prosecution story, as narrated in paragraph-2 of the impugned judgment, is as follows:

"Facts of the case are that on 10.12.2013 Muhammad Idrees SI (Pw-11) on receipt of information of the occurrence arrived at Tehsil Headquarter Hospital Jalalpur Pirwala where he recorded the statement (PL) of Muhammad Akbar (Pw-10). He maintained that on that day at about 06:00 pm, he along with Haji Asghar (given up as proceeded abroad) and Mumtaz Hussain (given up being won over) were present outside of their house along with Ghulam Qadir his father where Safdar Khan (appellant and brother of complainant), his maternal uncle Muhammad Amin and Muhammad Ajmal came; Muhammad Safdar (appellant) started exchange of hot words with Ghulam Qadir their father and asked for separate land measuring 4-Marlas which was refused by him; Safdar Khan felt it otherwise, brought out his licensed Repeater and within their views made a fire that hit on the right side under the ribs of Ghulam Qadir who being injured fell down on the ground; he was brought to Hospital, however, when arrived there, he had died. Muhammad Akbar further added that appellant committed the murder with the connivance of Muhammad Amin and Muhammad Ajmal for the motive that he was demanding 4-Marlas separate land from their father."

4. Having heard the learned counsel for the respective parties and having perused the entire record with their able assistance, we have incorporated and addressed the submissions and contentions raised during the course of arguments throughout the ensuing discussion and analysis within this judgment, thereby avoiding unnecessary repetition.

5. After scrutiny of the entire record, we have no hesitation to uphold the conviction of the petitioner as the prosecution has proved its case beyond reasonable doubt. The ocular account has been furnished by the complainant/real brother of the petitioner and son of the deceased, namely, Muhammad Akbar who appeared as PW-10. His deposition

remained unshaken despite a grueling cross-examination. His presence at the crime scene seems natural given the place of occurrence being just outside their residence. The parties are well known to each other and there is no probability of misidentification. The promptitude with which the FIR was lodged effectively precludes the possibility of fabrication, deliberation, or the substitution of a real culprit with the petitioner. Furthermore, the medical evidence provided by Dr. Muhammad Arshad Ali Sahu (PW-9) corroborates the ocular account regarding the locale of the injury (left lower chest and adjacent to lower abdomen) and the nature of the weapon used. The primary contention of the petitioner remains the non-production of two out of the three eyewitnesses mentioned in the FIR. It appears from the record that the prosecution abandoned the eyewitness, namely, Muhammad Asghar, as he had proceeded abroad and the other eyewitness, namely, Mumtaz Hussain, who had connived with the petitioner. Due to such position, the learned counsel for the petitioner has strongly argued that solitary ocular account furnished by the complainant cannot be relied upon to uphold the conviction. We do not see a way to agree with such a contention of the learned counsel as it is a cardinal principle of criminal jurisprudence that evidence is weighed, not counted. The testimony of a solitary witness, if found to be confidence-inspiring, intrinsically consistent, and corroborated adequately, is sufficient to sustain a conviction. Having undertaken a thorough review of the record, we observe that the courts below conducted an exhaustive analysis of the evidence, arriving at a concurrent determination of the guilt of the petitioner. Our independent evaluation of the same material provides no ground for reaching a divergent conclusion.

6. The learned counsel for the petitioner, while relying on the judgment of this Court in the case of *Zahid Rehman*¹, has also prayed for acquittal of the petitioner on the ground of compromise duly affected before the Trial Court. He further submitted that since the petitioner had been convicted and sentenced under section 302(b) of PPC to death as *ta'zir* by the Trial Court, which was later converted to imprisonment for life by the High Court, therefore, the provisions of section 311 PPC are

¹ *Zahid Rehman v State* (PLD 2015 SC 77).

not attracted to the case of the petitioner. On the other hand, learned APG contended that after the amendments introduced by Act No. XLIII of 2016² (“**the Amendment Act**”), the provisions of section 311 of PPC are attracted regardless of the punishment being *qisas* or *ta’zir*. In this regard, we deem it appropriate to dilate upon this matter in detail. Prior to the promulgation of the Amendment Act, the legal position was clarified by this Court in the case of *Zahid Rehman* (supra) and the relevant portion of the judgment is reproduced as under:

“In the cases of *Manzoor Hussain and 4 others v. The State* (1994 SCMR 1327), *Khan Muhammad v. The State* (2005 SCMR 599), *Iftikhar-ul-Hassan v. Israr Bashir and another* (PLD 2007 SC 111) and *Iqrar Hussain and others v. The State and another* (2014 SCMR 1155) this Court has already declared that the provisions of section 311 P.P.C. are relevant to and can be pressed into service in cases of *Qisas* only and not in cases of *Ta’zir*.”

After promulgation of the Amendment Act, the position has changed significantly whereby certain amendments have been made in sections 299, 302, 309, 310, 311 and 338E of PPC, and section 345 and Schedule-II of Cr.P.C. in order to give substantial effect to the doctrine of *fasad-fil-arz* as provided in section 311 of PPC. Through the Amendment Act, the term *fasad-fil-arz* has been defined in section 299(ee) of PPC as under:

“299. Definitions. In this Chapter, unless there is anything repugnant in the subject or context, -

.....

(ee) “fasad-fil-arz” includes the past conduct of the offender or whether he has any previous conviction or the brutal or shocking manner in which the offence has been committed which is outrageous to the public conscience or if the offender is considered a potential danger to the community or if the offence has been committed in the name or on the pretext of honour;”

Similarly, section 311 of PPC has been amended as under:

“311. Ta’zir after waiver or compounding of right of qisas in qatl-i-amd.- Where all the *wali* do not waive or compound the right of *qisas*, or if the principle of *fasad-fil-arz* is attracted, the court may, having regard to the facts and circumstances of the case, punish an offender against whom the right of *qisas* has been waived or compounded with death or imprisonment for life or imprisonment of either description for a term of which may extend to fourteen years as *ta’zir*.

² Criminal Law (Amendment) (Offences in the Name or on pretext of Honour) Act, 2016.

Provided that if the offence has been committed in the name or on the pretext of honour, the punishment shall be imprisonment for life.”

Likewise, section 338E of PPC was also amended as it now reads as under:

“338E. Waiver or compounding of offences.- (1) Subject to the provisions of this Chapter and section 345 of the Code of Criminal Procedure, 1898 (V of 1898), all offences under this Chapter may be waived or compounded and the provisions of sections 309, 310 and 311 shall, *mutatis mutandis*, apply to the waiver or compounding of such offences:

Provided that, where an offence has been waived or compounded, the court may, in its discretion having regard to the facts and circumstances of the case, acquit or award *ta’zir* to the offender according to the nature of the offence.

Provided further that where an offence under this Chapter has been committed and the principle of *fasad-fil-arz* is attracted, the court having regard to the facts and circumstances of the case shall punish an offender with imprisonment or fine as provided for that offence.

(2) All questions relating to waiver or compounding of an offence or awarding of punishment under section 310, whether before or after the passing of any sentence, shall be determined by trial court:

Provided that where the sentence of *qisas* or any other sentence is waived or compounded during the pendency of an appeal, such questions may be determined by the appellate court.”
(Underlined for emphasis).

7. The holistic reading of all the amended sections shows that the legislature has changed the scheme of punishment in order to give effect to the principle of *fasad-fil-arz* and the provisions of section 311 of PPC are to be given effect regardless of punishment being *qisas* or *ta’zir*. However, the said amended position is not applicable to the instant case as the occurrence took place on 10.12.2013 and the Amendment Act came into force on 22.10.2016 and such amendment cannot be given retrospective effect as per settled jurisprudence in the light of legal maxims *nullum crimen sine lege* (no crime without law) and *nulla poena sine lege* (no penalty without a law).

8. For the reasons recorded above, in the light of the compromise affected between the petitioner and the legal heirs of the deceased, the

Criminal Miscellaneous Application No. 1091/2024 is accepted and, consequently, the jail petition is converted into an appeal and allowed. The petitioner is acquitted on the basis of the said compromise and he shall be released forthwith if not required to be detained in any other case.

Islamabad
04.05.2026
(Farrukh)



Approved for Reporting